

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1884

By: Bullard of the Senate

and

Hasenbeck and Townley of
the House

12 An Act relating to school employees; amending 70 O.S.
13 2021, Section 509.11, which relates to equal access
14 to employees of a school district; modifying what
15 constitutes access regarding statewide professional
16 educators' associations; prohibiting equal access
17 from being conditional on certain provisions or
18 services; directing certain communications to be
19 classified as promotional events; prohibiting equal
20 access from including certain communications;
21 permitting distribution of certain materials in
22 school mailboxes; prohibiting a school district from
23 requiring a fee or other payment from statewide
24 professional educators' associations for certain
 activities; requiring certain notification if certain
 equal access is denied; requiring notification of the
 State Board of Education if equal access is not
 granted within certain time period; updating
 statutory language; allowing school district
 employees to terminate membership in certain
 organization at any time; prohibiting an organization
 from taking certain actions; prohibiting certain
 policy or agreement from placing certain conditions
 or requirements on certain initiation or termination;
 providing certain construction; providing for

1 codification; providing an effective date; and
2 declaring an emergency.

3
4 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

5 SECTION 1. AMENDATORY 70 O.S. 2021, Section 509.11, is
6 amended to read as follows:

7 Section 509.11. A. No school district, employee of a school
8 district, or employee organization shall deny by any means,
9 including a collective bargaining agreement, a statewide
10 professional educators' association equal access to employees of the
11 school district, to the same extent that access is granted to other
12 educators' associations. For purposes of this section, access shall
13 include, but is not limited to:

14 1. Setting up informational tables at in-service or other
15 similar teacher meetings;

16 2. Speaking at in-service or other similar teacher meetings;

17 3. Distributing information ~~in school mail boxes or~~ through the
18 school ~~e-mail~~ electronic mail system;

19 4. Utilizing school district meeting rooms during nonworking
20 hours;

21 5. Representing employees in employment matters, when requested
22 by the employee;

23 6. Posting information on school district bulletin boards or
24 other common space displays; and

1 7. ~~Utilizing school district printing services~~ Promotional
2 events.

3 B. Any association which utilizes school district facilities or
4 services shall reimburse the district for any costs incurred by the
5 district due to association activities.

6 C. Equal access shall not be conditional on provisions or
7 services requested by school districts including, but not limited
8 to, furnished meals, snacks, gifts, donations, or other types of
9 sponsored activities.

10 D. Communication by an employee, volunteer, or member of a
11 statewide professional educators' association on behalf of the
12 association or a local affiliate group that pertains to a collective
13 bargaining agreement or negotiated employment contract pursuant to
14 Section 509.2 of this title shall, for the purposes of this section,
15 be classified as a promotional event hosted by the statewide
16 association, and all other statewide professional educators'
17 associations and their employees shall be granted equal access to
18 communicate with school employees to the same extent. For the
19 purposes of this section, communication includes, but is not limited
20 to, presentations, speaking events, meetings, electronic mails,
21 informational displays, and virtual forum posts. For the purposes
22 of this section, equal access shall not include communications
23 between a statewide professional educators' association and a school
24 district board of education or its duly designated representatives

1 prior to a collective bargaining agreement or negotiated employment
2 contract being agreed upon pursuant to Section 509.2 of this title.

3 E. Distribution of promotional materials to all employees in
4 school mailboxes by employees or associated members of a statewide
5 professional educators' association shall be permitted. Promotional
6 materials may include, but are not limited to, promotional
7 brochures, competitor comparison brochures, informational pamphlets,
8 membership applications, gift items, and association member gifts.

9 F. School districts shall not require a fee or other payment
10 from statewide professional educators' associations for access,
11 promotional material review, promotional material distribution, or
12 other related activities.

13 G. 1. A statewide professional educators' association that is
14 not allowed access as provided for in this section shall notify the
15 board of education of the school district where access was denied.

16 2. Upon notification, if the school district board of education
17 does not ensure equal access is provided to the statewide
18 professional educators' association within fifteen (15) days, the
19 association shall notify the State Board of Education.

20 SECTION 2. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 509.13 of Title 70, unless there
22 is created a duplication in numbering, reads as follows:

23 A. A school district employee who is a member of an employee
24 organization designated pursuant to Section 509.2 of Title 70 of the

1 Oklahoma Statutes may terminate membership in the employee
2 organization at any time. Upon receipt of a school district
3 employee's termination of membership via mail or electronic mail,
4 the employee organization shall terminate the employee's membership
5 and cease collection of dues.

6 B. An employee organization designated pursuant to Section
7 509.2 of Title 70 of the Oklahoma Statutes shall be prohibited from:

8 1. Limiting a school district employee's right to terminate his
9 or her membership only during certain dates or by using specific
10 forms; and

11 2. Requiring a school district employee to disclose the reason
12 for his or her membership termination.

13 C. 1. No school district board of education policy or
14 negotiated agreement shall place any other conditions or
15 requirements on any school district employee to initiate or
16 terminate membership in an employee organization.

17 2. Any negotiated agreement in effect upon the effective date
18 of this act that places any conditions or requirements on any school
19 district employee to initiate or terminate membership in an employee
20 organization shall be null and void upon the effective date of this
21 act.

22 SECTION 3. This act shall become effective July 1, 2026.

23 SECTION 4. It being immediately necessary for the preservation
24 of the public peace, health, or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.
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4 COMMITTEE REPORT BY: COMMITTEE ON GOVERNMENT OVERSIGHT, dated
5 04/14/2026 - DO PASS
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